GOVERNMENT OF ANDHRA PRADESH
GENERAL ADMINISTRATION (GPM&AR) DEPARTMENT

Circular U.O. Note No. 7490/RTIA/GPM & AR/2011, Dated: 30.4.2011

Sub:- RTI Act, 2005 - Implementation of sub-section 3 of Section 7 of the Act - Intimation to pay additional fee for providing Information within the fixed period - Instructions - Issued.

Ref:- From the Secretary, APIC, Lr. No. 1811/APIC/B/2011, dt. 19.02.2011

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The Secretary, Andhra Pradesh Information Commission in his letter in the reference cited has reported that Public Information Officers after sending information asking the applicants to pay the fee are not taking further action and as a result the applicants are filing first appeals stating that the information sought for has not been furnished by the Public Information Officer and that the information be provided free of cost as laid down in sub-section (6) of Section 7 of the Act. In many cases the appellants are claiming that the communication asking them to pay the fee has not been received by them from the Public Information Officer within 30 days.

2. Sub-section (3) of Section 7 of the Right to Information Act, 2005 (Act 12 of 2005) provides that where a decision is taken to provide the information on payment of any further fee representing the cost of providing the information, the Public Information Officer (PIO) shall send an intimation to the person making the request giving the details of further fee to be paid requesting him to deposit the fee. The period intervening between the despatch of the said information and payment of fee shall be excluded for the purpose of calculating the period of 30 days prescribed in sub-section (1) of Section 7 of the Act.

3. All Department of Secretariat, all Heads of Department and District Collectors are therefore requested to issue instructions to all Public Authorities under their administrative control to ensure that the communication asking for payment further fees for providing information be sent by the Public Information Officer well before 30 days of receipt of the application filed under sub-section 1 of Section 6 of the Act. It is advisable to send the communication by Registered Post with acknowledgement due, so as to enable Public Information Officer to have evidence of despatch of the Communication and also ensure that the communication reaches the applicant and complaints regarding non receipt of the Communication regarding payment of fee are avoided.

4. Further the Public Information Officer should indicate a reasonable time fixing a date by which the further fee has to be paid. In case the further fee is not paid within the time allowed, the Public Information Officer can take a decision to reject the application on the ground of non-payment of the further fee duly informing the applicant.

MINNIE MATHEW
SPECIAL CHIEF SECRETARY TO GOVERNMENT

To

All Departments of Secretariat
All Heads of Department
All District Collectors

Copy to :

The Secretary
A.P. Information Commission
HACA Bhavan
Hyderabad.